



The diffusion of constitutional rights



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ABSTRACT

Constitutions are commonly regarded as uniquely national products, shaped by domestic ideals and politics. This paper develops and empirically investigates a novel hypothesis, which is that constitutions are also shaped by transnational influence, or “diffusion.” Constitutional rights can diffuse through four mechanisms: coercion, competition, learning and acculturation. To analyze diffusion in the constitutional realm, we traced the historical documents of all post-WWII constitutions and documented the presence of 108 constitutional rights. With this data, we first demonstrate and analyze the rapid global spread of constitutional rights over the past six decades. We then estimate a spatial lag model to explain their adoption. Our results show that the decision of countries to adopt a right is correlated with past adoption by their former colonizer, countries with the same legal origin, the same religion, the same former colonizer, and the same aid donor. These transnational correlations are strongest when a nation adopts its first constitution.

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1. Introduction

An important political development since WWII is the growing number of governments that have been willing to constrain themselves by constitutional means. Around the world, constitutions have been reformed in a wave of constitutionalism. Constitutional rights have been at the forefront of these reforms. Constitutions have gradually expanded their catalog of rights: first-generation negative liberty rights have been supplemented with second-generation positive socio-economic rights and third-generation cultural and group rights. Constitutions today enumerate an extensive list of rights that place substantive constraints on democratic politics. The enforcement of these rights is increasingly entrusted to the judiciary (Ginsburg, 2003). No less than 83% of the world's constitutions mandate the judiciary to overturn democratic decisions that contradict the constitution (Ginsburg and Versteeg, 2013).

These developments pose a puzzle: Why would self-interested elites willingly constrain themselves by constitutional means? Leading accounts in political science emphasize leaders' fear of revolution (Acemoglu and Robinson, 2000) and their response

to electoral pressures (Ginsburg, 2003; Hirschl, 2004). Constitutional scholars, by contrast, suggest that rights constitutionalism is spurred by the traumatic experience of war and repression, and a belief that unconstrained politics can be dangerous (Weinrib, 2007). What all these explanations have in common is that they focus on the *domestic* determinants of constitution-making. Whether through revolution, the electoral market or changing beliefs, the constitution is perceived as a national product.

In this paper, we develop a thus-far untested hypothesis, which is that constitutional pre-commitments are also externally driven, and shaped through transnational influence or diffusion. We hypothesize that states face both material and immaterial incentives to incorporate foreign constitutional norms. To develop this hypothesis, we build upon the literature on policy diffusion, which identifies different types of transnational influence, or mechanisms of diffusion. A first diffusion mechanism is *coercion*, which suggests that powerful states, such as former colonizers and aid donors, push for the adoption of specific constitutional arrangements in less powerful states. A second mechanism is *competition*, which implies that states strategically imitate foreign constitutions in order to attract foreign buyers and investors. A third mechanism is *learning*, which entails a functional borrowing of constitutional rights among states that share important pre-existing similarities, such as a similar legal system. And finally, a fourth diffusion mechanism is *acculturation*, which suggests that states emulate foreign

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constitutional rules not because they are convinced by the intrinsic merits of these rules, but to gain international acceptance and legitimacy.

To investigate whether constitutions are in part transnational documents, we traced all historical constitutional documents written since WWII and documented the presence or absence of 108 distinct constitutional rights. Using this data, we first describe the global evolution of constitution-making over the past six decades. The data reveals that the prevalence of almost all of these rights has increased steeply, and that almost all countries have been expanding their catalog of rights. While the countries that were early (or first) adopters are typically different for each right, the countries in Latin America appear to have more often served as early adopters or even inventors of new rights than other countries.

Using a sample of the 108 constitutional rights in 180 countries over the period 1948–2001, we then estimate a multi-order spatial lag model to explain their adoption. This allows us to investigate whether the decision of countries to adopt a right is correlated with past adoption by other countries, and, if so, which transnational dimensions of proximity (such as colonial ties, common language or religion, common legal origin) appear to be the most important as possible channels of diffusion. Our results show that a country's adoption of constitutional rights is correlated with past adoption by its former colonizer, as well as past adoption by foreign countries with the same legal origin, the same dominant religion, the same former colonizer, and the same dominant foreign aid donor. We also find substantial differences across countries and time periods. First, developing countries appear to be more susceptible to transnational influence than industrialized ones. Second, diffusion seems strongest when a nation adopts its first constitution. At this time, the transnational correlations account for no less than 46% of the variation in a nation's menu of constitutional rights.

The remainder of this paper is organized as follows. In Section 2, we conceptualize four distinct possible theoretical mechanisms behind constitutional diffusion, and a number of more specific channels through which these mechanisms may manifest themselves. In Section 3, we introduce our data on constitutions and document the rapid global spread of constitutional rights over the past six decades. In Section 4, we describe the spatial econometric analysis and discuss the construction of spatial lags. Section 5 reports the results from estimating the diffusion of constitutional rights. Section 6 explores whether the strength of diffusion varies across different types of countries, constitutional rights, and time periods. Section 7 concludes.

2. Explaining transnational influence

Our analysis on transnational influences in constitution-making builds upon a rich diffusion literature, developed in political science, economics, sociology, and geography. Diffusion is “the process by which the prior adoption of a trait or practice in a population alters the probability of adoption for the remaining non-adopters” (Strang, 1991, p. 325). Classical studies document the diffusion of innovations among groups of individuals, such as hybrid corn at Iowa farms (Ryan and Gross, 1943) and HYV cotton in a Southern Indian village (Besley and Case, 1994). A more recent macro literature explores the diffusion of policies or institutional innovations across states. Examples include the diffusion of democracy (Gleditsch and Ward, 2006), liberal economic policies or reforms (Simmons and Elkins, 2004), central bank independence (Polillo and Guillén, 2005), and bilateral investment treaties (Elkins et al., 2006). Laws and legal institutions have also been shown to diffuse (e.g. Boli-Bennet and Meyer, 1978), although transnational influences in law-making are more commonly studied as “transplantation” in the small-N comparative law literature (Twining, 2005).

The diffusion literature has proposed a number of mechanisms through which diffusion may take place, “ranging from Bayesian learning to rational competition through hegemonic domination to unthinking emulation of leaders” (Simmons et al., 2006, p. 787). We expect that constitutional rights may diffuse through four possible mechanisms—*coercion*, *competition*, *learning* and *acculturation*—because each of these has been theorized as an important predictor of transnational influence in the realm of human rights (Goodman and Jinks, 2004; Law, 2008).¹ Of course, we note that the state is an abstract entity that, in reality, consists of a range of different actors, often with diverging interests. It is therefore difficult to establish whether the state indeed learns or acculturates. To test the different *mechanisms*, we link them to more specific diffusion *channels*. Each channel is indicative of one or more broad diffusion mechanisms. For example, if states borrow from foreign states with which they share a common aid donor, this suggests that constitutional choices are driven by the carrots and sticks of aid donors and implicates constitutional coercion. Although we acknowledge that the channels do not map on to the diffusion mechanisms perfectly, this approach characterizes most of the diffusion literature (see e.g. Simmons and Elkins, 2004).

2.1. Coercion

A first diffusion mechanism is coercion. Coercion is the process whereby “states influence the behavior of other states by escalating the benefits of adoption and the costs of non-adoption through material rewards and punishments” (Goodman and Jinks, 2004, p. 633). When powerful nations exploit power asymmetries to impose their policy preferences on weaker nations, diffusion takes place. Such coercion includes the brute imposition of constitutional rules through force. The most paradigmatic examples of imposed constitutions can be found in the former colonies. For example, the independence constitutions of Britain's former colonies in Africa and the Caribbean were drafted and negotiated by Britain, which insisted upon the inclusion of a Bill of Rights modeled after the European Convention on Human Rights (Parkinson, 2007). Likewise, the U.S. directed the writing of the 1935 constitution of the Philippines (Billias, 2010) and the 1986 constitution of Micronesia (Tamanaha, 2013).

In an age of widespread commitment to democracy, however, transnational pressures in constitution-making in most cases are subtler than wholesale imposition and work through incentives and sanctions, or carrots and sticks rather than guns and bombs (Schauer, 2005). An important tool for such coercion is foreign aid. Recent decades have seen a growing consensus among economists that good institutions are an important recipe for economic growth (North, 1990). As a result, substantial financial resources have been allocated to rule-of-law reforms and improving institutions more generally (Rodrik, 2007). Such rule-of-law assistance may provide a direct impetus for constitutional reform (Hirschl, 2004). The link between institutions and growth has moreover been translated into aid conditionality, whereby aid is made conditional upon policies and institutions. Some aid conditions are cast in terms of institutional prescriptions, such as the adoption of an independent central bank or an independent constitutional court. Other aid conditions demand political reforms, such as democratization (Alesina and Dollar, 2000; Svensson, 1999) or government respect for civil and political rights (Neumayer, 2003). If aid donors indeed reward human rights, the constitution may be a particularly useful tool to signal good intentions (Farber, 2002). Thus, where aid is made

¹ For a more extensive review on the literature on constitutional rights diffusion and a further elaboration on these mechanisms see Goderis and Versteeg (2013).

conditional upon respect for human rights, aid recipients face financial incentives to constitutionally commit to rights.

In this paper, we empirically test two channels of constitutional coercion: coercion through colonial ties and through foreign aid. Colonial powers typically sought to leave a strong constitutional legacy in their former colonies. Some modeled the post-colonial constitutional landscape after their own, as the U.S. did in the Philippines. Others used a different template, like the U.K., which imposed a bill of rights on its colonies even though it notoriously lacked a bill of rights itself (Parkinson, 2007). Through such coercion, constitutions of former colonies came to resemble one another, or that of the former colonizer. A similar pattern may emerge from aid conditionality and rule-of-law assistance: the constitutions of aid recipients may be modeled after the constitution of the aid donor or some other template that is promoted by that donor.

2.2. Competition

A second diffusion mechanism is competition. Competition refers to the rivalry among two or more states for material benefits. Countries may compete for foreign capital or exports through the adoption of policies or institutions that are attractive to investors and buyers in international markets (Simmons et al., 2006). Competition has been shown to affect trade liberalization (Simmons and Elkins, 2004), welfare policies (Fiiglio et al., 1999), tax policies (Tiebout, 1956), bilateral investment treaties (Elkins et al., 2006) and even democracy (Jensen, 2003). In all of these cases, if one country adopts a policy or institution, its competitors are likely to follow so as to safeguard their position in export and international capital markets.

Foreign buyers and investors may not only value economic policies, they may also favor rights protection, in particular property rights and first generation liberty rights (Law, 2008). If so, constitutions can be used to offer attractive bundles of rights to foreign buyers and investors (Law, 2008). The fact that a constitution is a highly visible legal document, judicially enforceable and typically hard to amend, renders it particularly suitable to do so (Farber, 2002). Constitutional commitments are potentially credible commitments. Thus, the constitution may be employed as a strategic tool to attract economic benefits. To illustrate, economic considerations motivated the constitutional entrenchment of property rights and free-market guarantees in South Africa, New Zealand (Hirschl, 2004) and Egypt (Moustafa, 2007).

In this paper, we focus on the competition for foreign export markets. Associating with repressive regimes has negative reputational effects for foreign buyers. Human rights protection moreover adds to a secure investment climate, secure property rights and a transparent legal system, all of which lower the costs of doing business for foreign buyers (Law, 2008). If foreign buyers indeed award human rights, countries face economic incentives to offer attractive bundles of constitutional rights (Law, 2008). If one country reaps trade benefits through constitutional reform, others are likely to follow, resulting in rights diffusion among economic competitors.

2.3. Learning

A third diffusion mechanism is learning. In contrast with competition and coercion, learning theories do not assume that the constitutional choices of other countries alter material costs and benefits of rights adoption. Instead, constitutional choices of others generate new data that leads countries to change their beliefs or their confidence in existing beliefs (Simmons et al., 2006). There are different approaches to learning. Economists typically focus on “Bayesian learning”, in which agents use new information to update their knowledge. In practice, however, agents are unable to collect

and process all available information (March and Simon, 1993), and focus on the alternatives they are actually familiar with (Kahneman, 2003). Information constraints imply that learning may be channeled through social networks. Interaction through social networks is central in sociological approaches to learning (Gray, 1973). Through interaction, agents not only exchange information but also “convince” each other. Thus, sociological approaches tend to view learning as a complex cognitive process rather than a simple information updating. Learning does not just generate new truths, but also generates new beliefs. As a result, “actors ‘internalize’ new norms and rules of appropriate behavior and redefine their interests and identities accordingly” (Goodman and Jinks, 2004, p. 635).

Constitution-makers are likely to face information constraints (Tushnet, 1999). Assuming that it is impossible to consider all foreign constitutional practices, which experiences do constitution-makers draw on? At the most general level, we expect that constitution-makers learn from the states to which they are somehow close. Proximity implies information availability as well as interaction, both of which spur diffusion (Rogers, 2003). Moreover, constitution-makers, for functional reasons, may turn to the models of those with whom they share important pre-existing similarities. In our empirical analysis, information availability, interaction and pre-existing similarity are observationally equivalent, as all do imply proximity. Similarly, we cannot establish whether states actually “internalize” new norms and “change their minds” (as in sociological learning), or whether they merely update their information (as in Bayesian learning). Yet where proximity spurs diffusion, we assume that learning may be at work (Simmons and Elkins, 2004).

We empirically explore a number of channels through which learning may take place. The first is learning through legal similarity, among countries that share a common legal origin. Even though it has been argued that constitutional law transcends the traditional boundaries between the common- and civil law systems (Weinrib, 2007), constitution-makers consult the constitutional arrangements of nations with similar legal systems for functional reasons. Countries with the same legal system may have similar traditions, for example on the appropriate role of the state (Hayek, 1960), and exchange more information (Spamann, 2009). Second, we explore learning through trade relationships. Trade relationships might imply information exchange and interaction. Moreover, countries may also choose to harmonize their legal system with that of trade partners in order to ease cross-border transactions (Posner and Sunstein, 2006). Third, we explore the possibility that countries learn through a shared language. A shared language facilitates information flows and interaction between countries, both of which are conducive to learning. Fourth, we explore learning through a shared religion: religious partners may not only interact more, but may also consider each others’ constitutions for functional reasons. Because of religion, countries may extend the right to life to the unborn, as in the Irish constitution, or curtail women’s rights, as in Islamic constitutions. Fifth, we explore whether learning takes place through military alliances, since military allies, too, may interact more and exchange more information. At the same time military alliances may also indicate complex geopolitical relationships and historical conflict. When long-standing historical enemies enter a military alliance, attraction to each other’s constitutional model may be limited (Schauer, 2000). Finally, we explore whether geographic proximity is conducive to learning, since geographically close countries may also be more likely to interact and exchange information.

2.4. Acculturation

The last diffusion mechanism is acculturation: “the general process by which actors adopt the behavioral patterns of the

surrounding culture” (Goodman and Jinks, 2004, p. 626). This mechanism has its roots in organizational sociology (DiMaggio and Powell, 1983; Meyer and Rowan, 1977), which has demonstrated that organizations routinely follow taken-for-granted models regardless of their functional utility (Hafner-Burton and Tsutsui, 2005, p. 1382). Models are adopted not because of their utility, but because of their legitimacy and the social relationships they represent. These insights have been translated to state behavior by the “world polity school” in sociology (see for example Meyer et al., 1997). States adopt global institutional blueprints, not because of functional utility, but because they represent a global consensus.

Acculturation is different from coercion and competition in that states adopt constitutional norms not because of material cost and benefits but because of social rewards and sanctions. States desire to be part of a self-identified group of peers. As a result, they conform to the norms of these peers, regardless of the content of these norms. In this respect, acculturation is also different from learning. Where learning takes place, a norm is actively assessed, internalized and accepted, as a result of which beliefs are altered. With acculturation, a norm is adopted but not internalized, as a result of which outward conformance is detached from internal acceptance (Goodman and Jinks, 2004). The result is a “structural decoupling” between adopted norms and actual practices. Numerous examples have been documented: states adopt environmental policies in the absence of environmental problems (Frank et al., 2000), social welfare policies without a budget for implementation (Strang and Chang, 1993) or human rights without intention of compliance (Goodman and Jinks, 2004).

Constitution-writing may be motivated by a similar dynamic and constitution-makers may use the constitution to signal conformity to international norms and standards (Boli-Bennet and Meyer, 1978). The South African Constitution, for example, was shaped by “the emergence of a thin, yet significant international political culture (Klug, 2001, p.7).” Although most South Africans had suffered years of oppression under a legal system in which the role of judges was instrumental, the former pariah nation embraced Western liberal rights and a powerful constitutional court to gain international legitimacy (Klug, 2001).

In this paper, we focus on acculturation through a global “world polity,” as conceptualized by the world polity school (Meyer et al., 1997). Under this logic, all states influence each other and constitutional convergence will be global.

3. The global spread of rights

3.1. Data on constitutional rights

To test the various diffusion theories set out above, we constructed an original data set on 108 constitutional rights in the written constitutions of 188 countries over the period 1946–2006. For every post-WWII constitution, we traced the historical constitutional document and coded the presence of these 108 rights.² An important feature of our data is that it only captures written, “large-C”, constitutions and omits “small-c” constitutional practices, such as judicial interpretations and unwritten constitutional conventions. Written constitutions are unlikely to fully capture constitutional reality, since constitutional law also develops outside the text of the constitution (Llewellyn, 1934). Nonetheless, constitutional texts are highly visible commitments by national governments. Even when they are not written to alter domestic

practices, they may reflect important considerations of international politics and capture how governments advertise themselves to the rest of the world (Boli-Bennet and Meyer, 1980). This feature, in fact, makes them particularly suitable to test transnational influences.

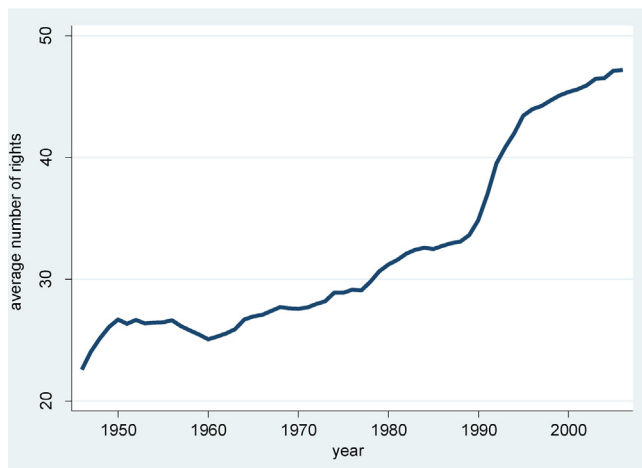
We define a country’s constitution as follows. First, any document or set of documents that a country formally designates to be its “constitution” is treated as such. This implies that our data includes some documents that are enacted as ordinary legislation as well as a few documents that are most accurately described as military decrees issued by dictatorial regimes. Most of the constitutions in the data were included pursuant this formal criterion. Second, in addition to this formal criterion, we also use a more functional one. Formal legal instruments that are not explicitly labeled “constitutional” but nevertheless govern constitutional matters such as the basic structure, powers, and limits of the state are also considered to be constitutional. Examples in this category are Israel’s Basic Laws, the U.K.’s 1998 Human Rights Act, and Canada’s 1960 Bill of Rights. Only few constitutions were included in the data on the sole basis of this criterion. Using these criteria, it turns out that, with the sole exception of Bhutan before 2008 (when it adopted its first written constitution), every single country possesses a written constitution of some sort.

From these documents, we coded 108 different rights. As a general rule, rights had to be mentioned explicitly in order to be counted as part of the constitution. For example, if a constitution contained an express right to “liberty”, this was not coded as constituting a “prohibition of arbitrary arrest and detention”, even if the word “liberty” could be interpreted as such by the courts. Thus, we refrained from giving our own (subjective) constitutional interpretation. Following this approach, we did not code limitation clauses, as the actual impact of a limitation clause can typically not be ascertained from the constitutional text alone. When coding constitutional rights, the text of the entire constitution was analyzed, and rights-related provisions were coded regardless of whether they appeared in a separate bill of rights or were intermingled with other types of provisions.

We coded each country’s constitution(s) from 1946 to 2006 or, if the country in question lacked a constitution in 1946, from the time that its first constitution was adopted. Countries that are not fully independent and governed (in part) by the constitution and laws of other countries are excluded. Allowing for the creation of new states and both the replacement and amendment of existing constitutions, a total of 729 documents were coded.

For each country in each year we documented the presence (or absence) of each of the 108 constitutional rights. The adoption of each of these rights represents a substantive constitutional decision. We do not include variables on constitutional features that capture the framing and phrasing of those rights, and that arguably capture semantics only. Yet, some of these 108 rights are broader than others. For example, the right to property is a broad and general right, while the right to equality for handicapped persons is more specific. Moreover, some of these more specific rights could, in principle, be grouped together as a more general right. For example, provisions on the “inviolability of correspondence”, the “privacy of personal data”, the “inviolability of the home”, the “right to personal privacy” and the “right to privacy of the family” could all be collapsed under the heading of a general privacy right. Even more broadly, all civil liberty rights could be collapsed under the heading of “liberty”, while socio-economic rights (food, housing and social security) could be collapsed under the heading of “positive rights”. Such general categories would probably make it easier to find constitutional similarities. But in order to be able to trace the specific paths of constitutional influence, we believe it is appropriate to look at more specific drafting choices. For

² The general coding approach resembles that of the Comparative Constitutions Project (<http://www.comparativeconstitutionsproject.org/>), although our data set includes a wider range of constitutional rights. A sub-set of the rights from our database also features in Law and Versteeg (2011, 2012).



Note: Figure 1 shows annual averages for the total number of countries for which we have data, which varies from 63 countries in 1946 to 188 countries in 2006.

Fig. 1. Number of rights in constitution, global average (out of 108).

example, while almost all constitutions offer some protection of liberty, some opt for “due process of law”, while others protect “personal privacy.” These specific manifestations of broad constitutional ideas may contain valuable information on transnational influence.

3.2. Global patterns of rights diffusion

An initial exploration of the data immediately reveals that constitutional rights have proliferated over time. Fig. 1 depicts the average number of rights (out of 108) in national constitutions over the past six decades. It shows that the average number of rights in national constitutions has more than doubled: from 22.6 rights in 1946 to 47.2 rights in 2006. Fig. 1 reveals a particularly strong increase in rights adoption in the 1990s. In the 1990s, 27 countries (primarily in Eastern Europe) became newly independent and (re)wrote their constitutions. Constitution-makers in these countries committed to an extensive catalog of rights, often to prevent undemocratic backsliding (Moravcsik, 2000). But the wave of constitution-making in the 1990s was not confined to Eastern Europe alone: numerous existing countries also expanded their catalog of rights. Indeed, the average number of rights among the 63 countries that were already included in our sample by 1946 increased from 22.6 rights in 1946, to 31.4 rights in 1976, and to 47.7 rights in 2006.

The proliferation of rights is not confined to any particular category of rights, but applies almost across the board, to almost all rights. Table 1 for each of the 108 rights reports the percentages of countries for which the corresponding right was included in their constitution in 1946, 1956, 1966, 1976, 1986, 1996 and 2006. The last column of Table 1 reports the change (in % points) in the prevalence of each right over the full period 1946–2006. Table 1 reveals that almost all rights have become more popular. The rights that witnessed the strongest increase in popularity are the protection of gender equality (+72% points), the presumption of innocence (+66% points), the right to a healthy environment (+63% points), the right to counsel (+60% points), the right to establish political parties (+56% points), and equality regardless of race (+56% points). But these are by no means the only rights that became more popular: out of the 108 rights in our sample, no fewer than 103 have seen an increase in popularity. In fact, the average percentage point increase among these 103 rights is 24.1.

The increase in popularity is fairly evenly distributed among the seven categories of rights listed in Table 1. The average increase in

popularity is 16.6% points for socioeconomic rights, 18.3% points for political rights, 20.2% points for women, children and family rights, 22.3% points for minority rights and new rights, 23.5% points for physical integrity rights and 24.6% points for equality rights. Fair trial rights have seen the largest increase in popularity (32.1% points). Indeed, by 2006, fair trial rights had become rather popular ingredients of the world's constitutions: the right to habeas corpus, the prohibition of ex post facto laws, the presumption of innocence, the right to present a defense, and the right to counsel are all part of no less than 70% of the world's constitutions.

The rights that are currently most popular overall are the freedom of religion, the freedom of expression, the right to equality, and the right to property. Each of these rights has been adopted by no less than 97% of all countries today. Almost equally prevalent are the right to assembly, the prohibition of arbitrary arrest and detention, and the right to privacy of the home, which are all present in 94% of the world's constitutions.

Only a handful of rights have fallen out of fashion since 1946. These are the right to bear arms, the right to petition, the freedom of learning and teaching, the right to work for the government, and the prohibition of confiscation of property as a punishment. In some cases, the decline results from the emergence of a different version of the same right: for example, while the freedom of learning and teaching is in decline, the prevalence of the right to education has increased. In other cases, the rights are in decline because they represent outdated problems or are simply considered to be a bad idea. The right to bear arms, for example, has not only seen a large decrease in popularity, but is one of the least popular rights today (found in only 2% of the world's constitutions).

The overall level of commitment to rights is spread fairly evenly across the globe. Fig. 2 depicts the total number of rights (out of 108) in each constitution in 2006 on a world map. The map reveals that there exist very few countries without formal commitments to rights altogether. Indeed, the countries with the lowest levels of formal rights commitments are diverse in nature and range from Brunei (whose constitution includes only one right), to Australia (whose constitution includes three rights) and Israel (whose various basic laws enshrine twelve rights in total). Also the U.S., with 24 rights, stands out for its relatively low level of formal rights commitment (Law and Versteeg, 2012). But while constitutional rights can be found in virtually all corners of the globe, there do exist some regional differences. The highest average number of rights can be found in Central & Eastern Europe and Central Asia (62.5 rights in 2006), followed by Latin America and the Caribbean (54.2), Sub-Saharan Africa (48.4), South Asia (41.6), Western Europe and North America (39.9), and East Asia and the Pacific (36.7). The lowest level of rights commitments can be found in North Africa and the Middle East, with an average of 31.8 rights per country in 2006. Even though differences exist, there exist no regions that are deprived of rights altogether. Indeed, it is striking that even the authoritarian rulers in North Africa and the Middle East formally committed to 31.8 rights on average. Moreover, as a number of constitution-making processes in the wake of the Arab Spring unfold, this region is likely to become more typical by global standards.

While there has been a strong trend toward constitutional rights adoption, not all countries came to the constitution-making stage at the same time. Some countries are early adopters, while others added their rights more recently. Table 2 presents a ranking of early adopters. Specifically, it lists how many rights were present in each country's constitution in 1966 (based on the countries that are actually in our sample in 1966, 1976, 1986, 1996 and 2006). The table reveals that many of the early adopters can be found in Latin America. The list is topped by Guatemala, which had adopted 65 out of 108 possible rights by 1966, followed by Venezuela (57 rights) and Panama (56 rights). Indeed, out of the top-20 countries that possessed the most rights in 1966, 11 are located in Latin America.

Table 1
108 constitutional provisions.

Constitutional right	1946 (n = 63)	1956 (n = 75)	1966 (n = 120)	1976 (n = 138)	1986 (n = 156)	1996 (n = 182)	2006 (n = 188)	'46–'06 ($\Delta\%$ points)
<i>I. Political, democratic and accountability rights</i>								
Freedom to form political parties	9%	16%	28%	26%	31%	63%	65%	+56
Right to a remedy when rights are violated	17%	20%	27%	28%	35%	49%	53%	+36
Right to information about government	2%	4%	3%	5%	8%	25%	34%	+32
Right to assembly	73%	77%	73%	75%	81%	90%	94%	+21
Right to association	72%	74%	78%	77%	80%	91%	93%	+21
Right to vote	63%	74%	73%	69%	74%	82%	84%	+21
Right to compensation	8%	12%	11%	13%	14%	23%	26%	+18
Right to freedom of religion	81%	88%	87%	88%	92%	95%	97%	+16
Freedom of expression	81%	86%	82%	83%	85%	94%	97%	+16
Right to resist when rights are violated	8%	7%	4%	4%	4%	15%	16%	+8
Freedom of press	76%	75%	66%	65%	63%	77%	81%	+5
Right to "petition for amparo"	6%	8%	6%	6%	7%	7%	8%	+2
Right to petition	64%	64%	43%	39%	40%	49%	50%	–14
<i>II. Life, liberty, physical integrity and privacy</i>								
Prohibition of torture	37%	37%	41%	45%	56%	80%	84%	+47
Right to personal privacy	5%	5%	12%	17%	25%	47%	52%	+47
Right to life	33%	33%	38%	41%	51%	71%	78%	+45
Right not to be expelled from home territory	30%	33%	38%	44%	48%	70%	73%	+43
Freedom of movement	50%	55%	58%	58%	64%	84%	88%	+38
Artistic freedom	10%	16%	13%	17%	23%	42%	45%	+35
Prohibition of slavery	32%	35%	40%	41%	46%	59%	64%	+32
Right to privacy of family life	5%	4%	10%	13%	19%	31%	36%	+31
Right to privacy of communication	67%	71%	68%	70%	73%	87%	89%	+22
Right to privacy of personal data	0%	0%	0%	1%	3%	16%	21%	+21
Free development of personality	0%	1%	8%	12%	11%	18%	20%	+20
Right to protection of one's reputation or honor	13%	11%	8%	10%	17%	29%	32%	+19
Prohibition of arbitrary arrest and detention	76%	81%	81%	79%	81%	92%	94%	+18
Prohibition of death penalty	10%	9%	8%	9%	12%	20%	24%	+14
Right to privacy of the home	81%	81%	76%	80%	81%	91%	94%	+13
Right to establish private schools	32%	29%	29%	26%	25%	40%	43%	+11
Protection of rights for unborn children	0%	0%	1%	1%	6%	7%	8%	+8
Right to bear arms	10%	8%	5%	4%	3%	3%	2%	–8
Freedom of education	47%	45%	32%	27%	26%	34%	37%	–10
<i>III. Fair trial</i>								
Presumption of innocence	8%	12%	31%	37%	49%	69%	74%	+66
Right to counsel	10%	17%	31%	38%	47%	66%	70%	+60
Right to present a defense	30%	37%	52%	57%	64%	69%	72%	+42
Prohibition of ex post facto laws	41%	51%	57%	60%	67%	77%	80%	+39
Right to a timely trial	8%	11%	18%	22%	31%	40%	47%	+39
Right to an interpreter	3%	7%	18%	20%	28%	37%	41%	+38
Right to "fair" trial	2%	3%	16%	19%	25%	32%	38%	+36
Prohibition of double jeopardy	16%	19%	26%	31%	37%	46%	50%	+34
Right to public trial	43%	47%	46%	48%	53%	65%	69%	+26
Right to remain silent	29%	29%	32%	31%	38%	47%	49%	+20
Right of access to court (habeas corpus)	68%	68%	64%	62%	64%	85%	86%	+18
Right to appeal to higher court	8%	8%	7%	7%	8%	20%	25%	+17
Rights for prisoners	10%	12%	9%	12%	10%	15%	18%	+8
Right to "due process"	6%	5%	5%	5%	8%	10%	13%	+7
<i>IV. Equality rights</i>								
Equality regardless of gender	14%	28%	45%	59%	71%	85%	86%	+72
Equality regardless of race	17%	25%	49%	55%	63%	70%	73%	+56
Equality regardless of belief/philosophy	5%	7%	21%	26%	35%	45%	49%	+44
Equality regardless of religion	20%	28%	40%	42%	47%	60%	62%	+42
Equality regardless of political opinion	5%	4%	18%	22%	29%	45%	47%	+42
Equality regardless of social status	5%	9%	10%	17%	21%	37%	41%	+36
Equality regardless of language	8%	9%	10%	12%	19%	36%	41%	+33
General equality clause	70%	76%	85%	88%	92%	95%	97%	+27
Equality regardless of ethnicity	0%	0%	3%	8%	9%	20%	25%	+25
Equality regardless of economic status	2%	4%	5%	8%	9%	22%	25%	+23
Equality regardless of place of origin	0%	1%	14%	19%	26%	21%	21%	+21
Equality regardless of nationality	5%	15%	11%	11%	14%	24%	22%	+17
Equality regardless of disability	0%	0%	0%	0%	2%	8%	16%	+16
Equality regardless of age	0%	0%	0%	0%	1%	5%	10%	+10
Equality regardless of education	0%	1%	1%	4%	5%	8%	8%	+8
Equality regardless of tribe	0%	0%	8%	7%	8%	7%	8%	+8
Equality regardless of ancestry	0%	1%	3%	3%	4%	4%	5%	+5

Table 1 (Continued)

Constitutional right	1946 (n = 63)	1956 (n = 75)	1966 (n = 120)	1976 (n = 138)	1986 (n = 156)	1996 (n = 182)	2006 (n = 188)	'46–'06 (Δ% points)
Equality regardless of caste	0%	1%	3%	4%	3%	3%	3%	+3
Equality regardless of sexual orientation	0%	0%	0%	0%	0%	1%	3%	+3
Equality regardless of hiv/aids	0%	0%	0%	0%	0%	0%	1%	+1
<i>V. Socio-economic rights</i>								
Right to form trade unions	24%	35%	49%	48%	48%	67%	71%	+47
Right to health	24%	39%	33%	41%	49%	64%	71%	+47
Right to work	46%	56%	56%	65%	63%	78%	80%	+34
Right to social security	41%	53%	46%	52%	52%	64%	65%	+24
Freedom of enterprise	33%	43%	33%	33%	35%	55%	57%	+24
Right to housing	16%	17%	14%	17%	22%	35%	38%	+22
Right to favorable working conditions	17%	24%	17%	18%	24%	34%	37%	+20
Right to education	64%	72%	60%	63%	65%	78%	82%	+18
Right to sport	8%	12%	7%	7%	16%	24%	26%	+18
Right to private property	81%	85%	81%	83%	87%	95%	97%	+16
Right to minimum wage	22%	25%	22%	23%	23%	36%	38%	+16
Right to adequate standard of living	6%	11%	16%	18%	22%	23%	22%	+16
Right to rest	27%	40%	33%	35%	33%	42%	42%	+15
Right to food	0%	4%	3%	6%	11%	14%	15%	+15
Intellectual property	24%	27%	18%	19%	19%	29%	32%	+8
Prohibition of child labor	9%	12%	8%	8%	7%	13%	15%	+6
Right to water	0%	0%	0%	1%	1%	4%	6%	+6
Right to strike	21%	20%	28%	25%	23%	45%	24%	+3
Right to work for the government	40%	39%	27%	30%	25%	35%	37%	–3
Prohibition of confiscation	35%	33%	21%	17%	13%	15%	15%	–20
<i>VI. Women, children and family</i>								
Right to establish a family	28%	28%	38%	43%	46%	62%	67%	+39
Rights for children	24%	33%	28%	33%	39%	58%	63%	+39
Rights for elderly people	3%	3%	3%	7%	12%	22%	27%	+24
Special protection of mothers	21%	31%	23%	30%	31%	41%	44%	+23
Equality husband and wife within the family	8%	12%	7%	9%	14%	24%	27%	+19
Right to get married	18%	31%	30%	28%	26%	32%	35%	+17
Women empowerment in labor relations	10%	16%	10%	11%	13%	18%	21%	+11
Right to maternity leave	13%	24%	16%	15%	16%	18%	20%	+7
Special protection of women	20%	25%	19%	17%	15%	21%	23%	+3
<i>VII. Minority rights, environmental rights and other 'new rights'</i>								
Right to a healthy environment	0%	0%	1%	8%	20%	52%	63%	+63
Right to culture	13%	21%	18%	29%	36%	47%	49%	+36
Protection of minority language	3%	12%	9%	10%	14%	32%	38%	+35
Rights for handicapped people	0%	1%	3%	5%	12%	25%	32%	+32
Right to preserve traditional ways	5%	12%	8%	9%	13%	30%	35%	+30
Right to asylum	11%	21%	18%	21%	21%	32%	35%	+24
Special protection of minorities	10%	16%	11%	12%	15%	28%	32%	+22
Rights for consumers	0%	0%	0%	1%	6%	12%	16%	+16
Rights for victims of crimes	0%	0%	0%	0%	1%	7%	10%	+10
Schooling right for minorities	7%	11%	8%	7%	8%	14%	16%	+9
Autonomy for minorities	0%	1%	1%	0%	1%	6%	6%	+6
Right for minorities to use indigenous lands	6%	5%	5%	5%	8%	9%	10%	+4
Representation right for minorities	6%	5%	3%	3%	2%	4%	9%	+3

Note: The columns 1946, 1956, 1966, 1976, 1986, 1996 and 2006 of this table report the percentages of countries for which the corresponding right was included in their constitution in the corresponding year, where *n* represents the total number of countries for which we have data. The final column reports the change (in percentage points) between 1946 and 2006.

To some extent, the prevalence of Latin American countries among the early adopters results from these countries' old constitutional traditions, which date back to the early 19th century. At the same time, other countries with old constitutional traditions (notably the U.S. and Western European countries such as Norway, the U.K., or Belgium) do not make the top of the list and have been far more conservative with rights adoption, seemingly following trends rather than setting them. Moreover, many of the Latin American countries continue to be rights inventors up till this very day. The countries with the largest number of rights today are almost exclusively found in Latin America, and comprise of Ecuador (91 rights), Nicaragua (84 rights), Colombia (82 rights), Portugal (80 rights), Venezuela (79 rights) and Paraguay

(77 rights). Some rights even originate in these countries. To illustrate, the right to food was first adopted by Argentina in 1949, the right to life for the unborn was first adopted by Venezuela in 1947, the right to a healthy environment was first adopted by Guatemala in 1965, the right to water was first adopted by Panama in 1972, and victims' rights were first adopted by Chile in 1980.

Figs. 3–9 graphically illustrate the diffusion of seven individual rights—one from each of the seven categories listed in Table 1—on a world map. The darker the color-coding on the maps, the later a country adopted the right. The lightest shade denotes the countries that had already adopted the right by 1966, while the darkest shade is reserved for the countries that had not yet adopted the right by

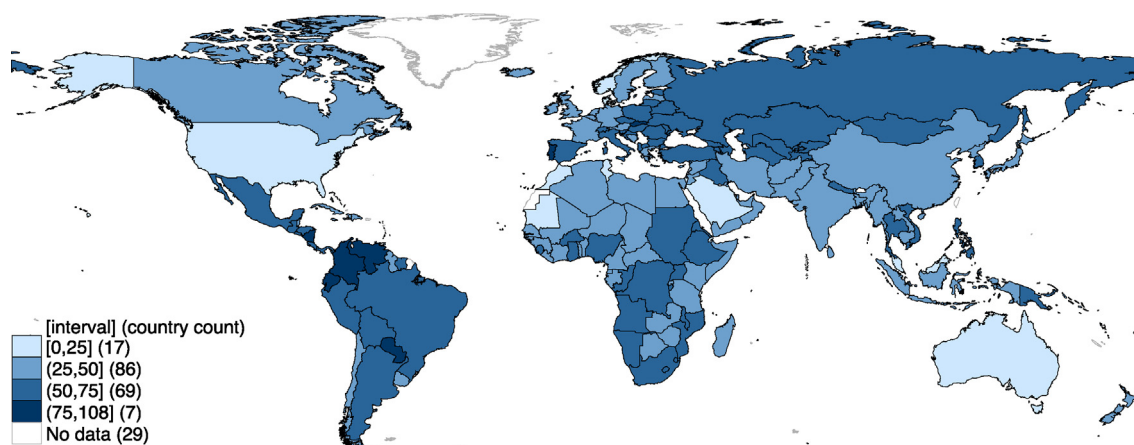


Fig. 2. Number of rights per constitution (out of 108) in 2006.

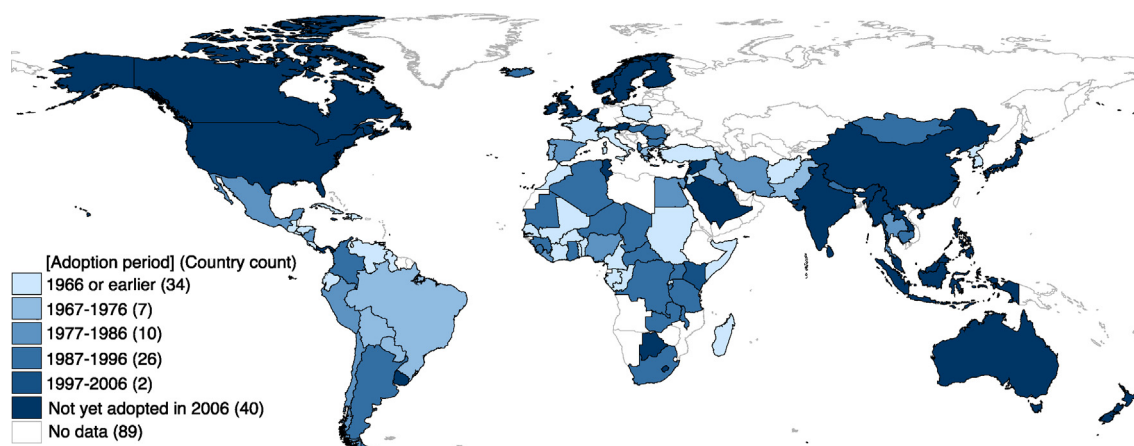


Fig. 3. Diffusion of the right to establish political parties.

Table 2

Ranking of countries based on the number of rights adopted in 1966 or earlier.

1: Guatemala (65)	31: Argentina (36)	61: Chile (29)	91: Tonga (17)
2: Venezuela (57)	32: Zambia (35)	62: Spain (28)	92: Tanzania (16)
3: Panama (56)	33: Uganda (35)	63: France (27)	93: Netherlands (16)
4: Italy (54)	34: Peru (35)	64: Egypt (27)	94: Belgium (15)
5: Honduras (53)	35: Kenya (35)	65: Nepal (27)	95: Switzerland (15)
6: El Salvador (52)	36: Sierra Leone (34)	66: Senegal (26)	96: Chad (15)
7: Somalia (51)	37: Mongolia (34)	67: Sudan (26)	97: Burundi (14)
8: Cuba (50)	38: Portugal (34)	68: Ireland (25)	98: Norway (13)
9: Turkey (49)	39: Botswana (34)	69: Central Afr. Rep. (25)	99: Iceland (13)
10: Costa Rica (48)	40: Guyana (33)	70: Iraq (25)	100: Lebanon (13)
11: Ecuador (48)	41: Barbados (33)	71: United States (24)	101: Maldives (12)
12: Cyprus (48)	42: China (33)	72: Liechtenstein (24)	102: Indonesia (11)
13: Albania (46)	43: Nigeria (33)	73: Luxembourg (23)	103: Mali (11)
14: Malta (45)	44: Pakistan (33)	74: Greece (23)	104: Niger (10)
15: Uruguay (42)	45: Myanmar (33)	75: Colombia (23)	105: Sweden (10)
16: Nicaragua (42)	46: Kuwait (33)	76: Congo, Rep. (23)	106: Cote d'Ivoire (10)
17: India (42)	47: Jamaica (33)	77: Algeria (23)	107: Burkina Faso (9)
18: Brazil (41)	48: Hungary (32)	78: Guinea (22)	108: United Kingdom (7)
19: Korea, Republic (40)	49: Samoa (32)	79: Canada (21)	109: Mauritania (7)
20: Mexico (40)	50: Paraguay (31)	80: Benin (21)	110: Malawi (5)
21: Bolivia (39)	51: Gambia (31)	81: Malaysia (21)	111: Australia (3)
22: Romania (39)	52: Austria (31)	82: Liberia (21)	112: Laos (3)
23: Haiti (39)	53: Madagascar (30)	83: Syrian Arab Rep. (20)	113: Cameroon (3)
24: Dominican Rep. (38)	54: Rwanda (30)	84: Tunisia (20)	114: Israel (1)
25: Japan (38)	55: Jordan (30)	85: Iran, Islamic Rep. (19)	115: Sri Lanka (1)
26: Bulgaria (37)	56: Trinidad and Tob. (30)	86: Denmark (19)	116: Ghana (1)
27: Lesotho (37)	57: Togo (29)	87: Finland (19)	117: New Zealand (1)
28: Congo, Dem. R. (36)	58: Philippines (29)	88: Morocco (18)	118: South Africa (0)
29: Poland (36)	59: Afghanistan (29)	89: Cambodia (18)	119: Thailand (0)
30: Korea, Dem. Rep. (36)	60: Gabon (29)	90: Singapore (17)	120: Saudi Arabia (0)

Notes: This table includes only the 120 countries for which we have data for 1966, 1976, 1986, 1996 and 2006. These countries are ranked according to the number of rights (reported in parentheses) that was present in their 1966 constitution (out of the total of 108 rights in our data set).

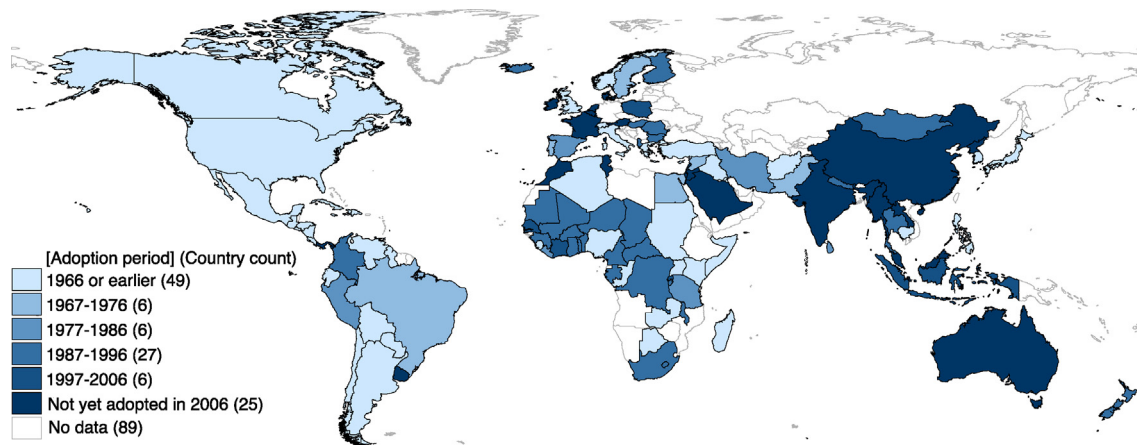


Fig. 4. Diffusion of the prohibition of torture.

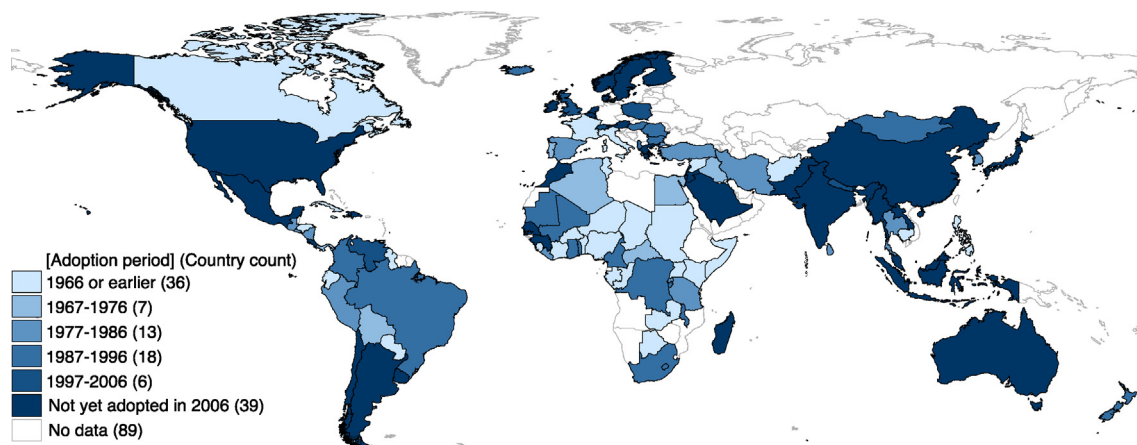


Fig. 5. Diffusion of the presumption of innocence.

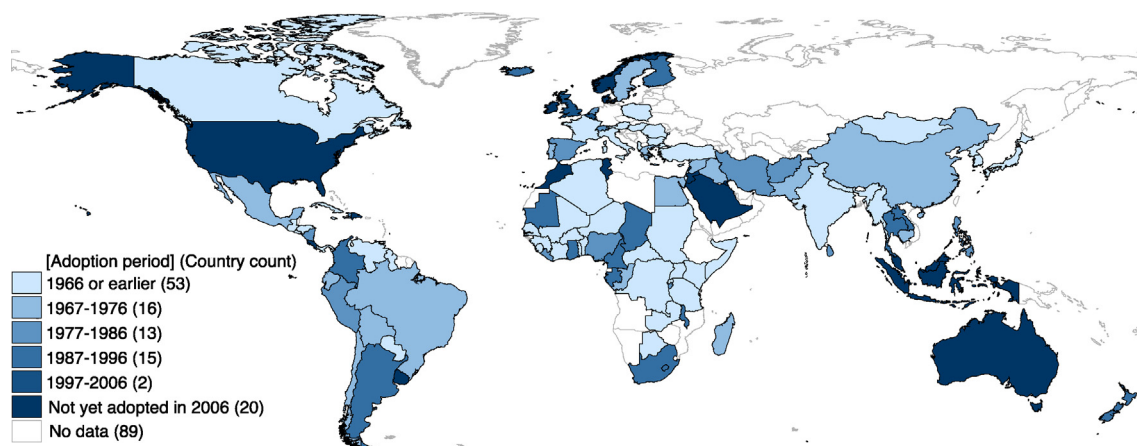


Fig. 6. Diffusion of gender equality.

2006. Countries that were not yet in existence by 1966 are excluded from the analysis and left blank on the maps. Figs. 3–9 show that the adoption patterns are substantially different for each right. At the same time, while adoption patterns differ, the maps also show some commonalities across the seven rights. Specifically, and consistent with Table 2, early adopters can be found in Latin America for almost all rights. The only right for which the Latin American region as a whole was not in the lead is the presumption of innocence.

The record of other geographic regions is more mixed however. A number of African countries were early adopters of gender equality clauses, the right to establish political parties, the prohibition of torture, and the presumption of innocence, but not for the other rights. European countries, by contrast, tended to be among the early adopters of the right to health care, and the prohibition of torture only. Another thing that stands out from the maps is that there exist a number of countries—most notably the U.S., Canada, Australia and India—that are either among the first adopters or

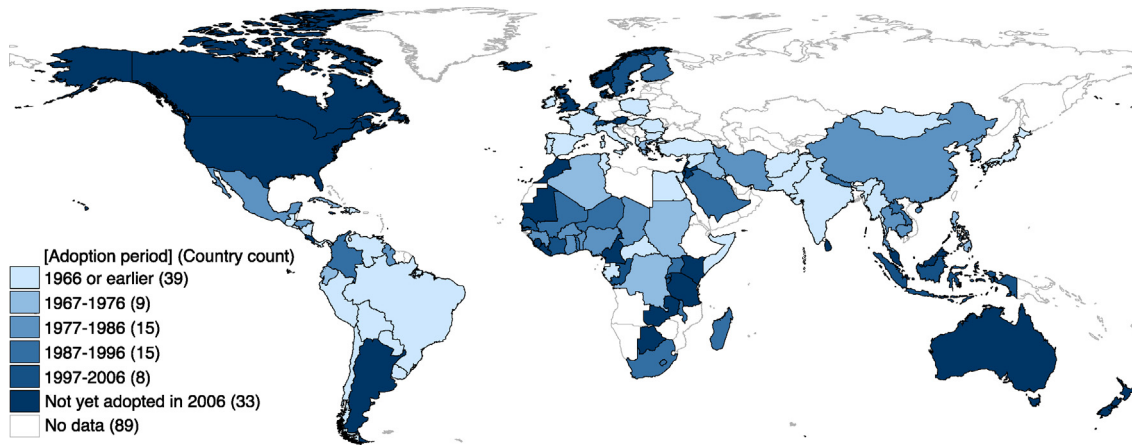


Fig. 7. Diffusion of the right to health(care).

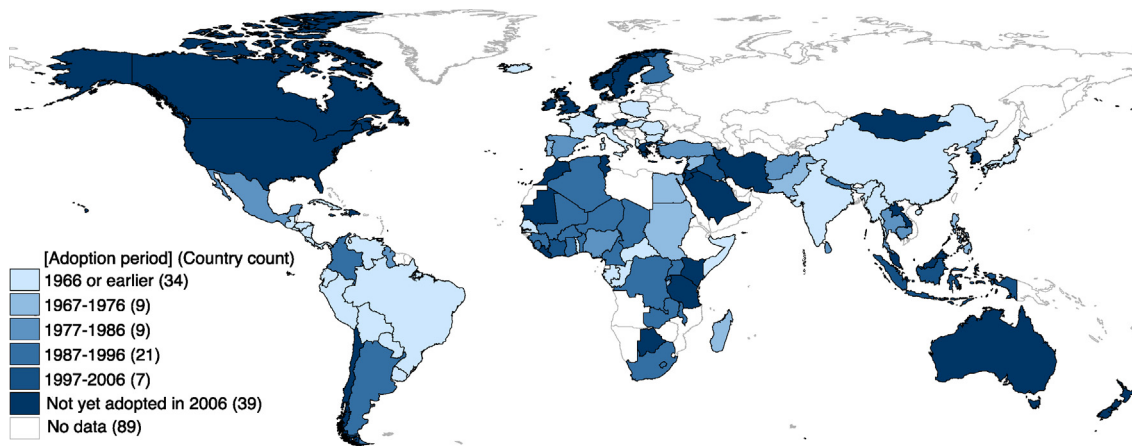


Fig. 8. Diffusion of children's rights.

among the last, depending on the right at issue. The reason is that these countries have not been updating their bills of rights as often as most other countries.

Overall, the impression that emerges is that Latin American countries have often served as early adopters and even inventors of new rights, but that the exact patterns of diffusion are ultimately different for each right. The next section will further explore overarching patterns of rights adoption and diffusion, and will explore whether and to what extent the decisions to adopt a right are interdependent across countries.

4. The spatial econometric analysis

The past few decades have seen a sweeping move toward more rights protection in national constitutions. We now turn to the econometric analysis in which we aim to address the following two questions:

1. Do constitutional rights diffuse? Or in other words, does the prior adoption of a constitutional right in some countries alter the probability of adoption of others?
2. If there is diffusion, through which channels does it take place?

Empirical studies of diffusion typically estimate models of spatial interdependence, as developed in the spatial econometrics literature. The focus of this literature is on the estimation of theoretical models of interdependence in which space is not limited to geography but can relate to social, economic, political, or other

connections. Interdependence is modeled by the inclusion of spatial lags, the coefficients of which capture the average strengths of interdependence (Franzese and Hays, 2008). Following this literature, we analyze the diffusion of constitutional rights using the following spatial lag model of order p :

$$y_{cit} = \rho^1 \sum_{j \neq i} (\omega_{ijt-1}^1 \times z_{cjt-1}) + \rho^2 \sum_{j \neq i} (\omega_{ijt-1}^2 \times z_{cjt-1}) + \dots + \rho^p \sum_{j \neq i} (\omega_{ijt-1}^p \times z_{cjt-1}) + \alpha_{it} + \delta_{ct} + \varepsilon_{cit} \quad (1)$$

In the above equation, the subscripts $c = 1, \dots, N$, $i = 1, \dots, M$, and $t = 1, \dots, T$ index the constitutional rights, countries, and years in the panel, respectively. Here y_{cit} is a dummy variable that captures the adoption of right c by country i in year t . In particular, letting z_{cit} represent a dummy variable that takes a value of one if a country's constitution contains a right and zero if it does not, the dependent variable y_{cit} is constructed as follows:

$$y_{cit} = \begin{cases} 1 & \text{if } z_{cit} = 1 \text{ and } z_{cit-1} = 0 \\ 0 & \text{if } z_{cit} = 0 \text{ and } z_{cit-1} = 0 \\ \cdot & \text{if } z_{cit-1} = 1 \end{cases} \quad (2)$$

The aim of our empirical analysis is thus to explain the adoption (or "onset") of a constitutional right, i.e. the presence of a right in a country's constitution conditional on the absence of that right in the previous year. After adoption of a right, the dependent variable

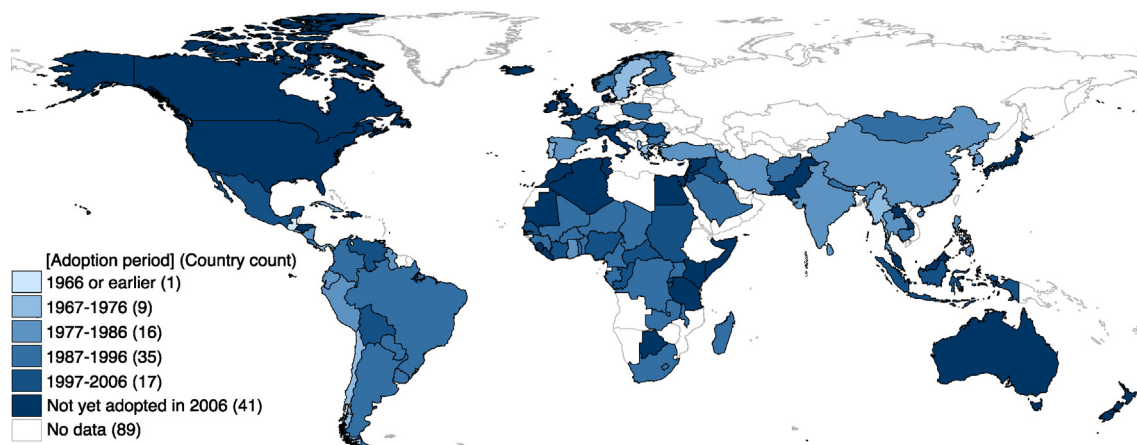


Fig. 9. Diffusion of the right to a healthy environment.

is coded as missing.³ We use the data set on 108 constitutional rights (listed in Table 1), as introduced and described in Section 3, to construct the dependent variable. Tables 3 and 4 report data sources and summary statistics for this dependent variable.

The spatial lags $\sum_{j \neq i} (\omega_{ijt-1}^1 \times z_{cjt-1}), \dots, \sum_{j \neq i} (\omega_{ijt-1}^p \times z_{cjt-1})$ in Eq. (1) capture the weighted average incidence of constitutional rights in other countries, hence in all countries $j \neq i$. Here the weights $\omega_{ijt-1}^1, \dots, \omega_{ijt-1}^p$ correspond to the relative connectivity from country j to country i in year $t-1$ for each of the p dimensions of space (e.g. trade relationships, common language). To address potential problems of non-stationarity, we “row-standardize” the spatial weights matrices by dividing each weight by the sum of weights so that $\sum_{j \neq i} \omega_{ijt-1}^1 = 1, \dots, \sum_{j \neq i} \omega_{ijt-1}^p = 1$. As a result, the spatial lags can be viewed as weighted averages. The variable z_{cjt-1} captures the presence of right c in country j in year $t-1$. The spatial lags thus capture the presence of rights in other countries, while recognizing the potential importance of space by giving higher weights to countries that are in closer “proximity.” The parameters $\rho^1, \dots, \rho^p$ in Eq. (1) are the spatial autoregressive coefficients, reflecting the average strengths of interdependence, or diffusion, across each of the space dimensions.

The country-year fixed effect α_{it} controls for any characteristics that vary across countries and years but do not vary across constitutional rights, such as democratization, political instability, or economic growth. Thus, insurance policies (Ginsburg and Versteeg, 2013), hegemonic preservation (Hirschl, 2004) and other types of constitutional moderation of the electoral tide are controlled for. The same is true for the characteristics of the legal system, such as whether a country respects the rule of law, whether the judiciary is independent, or the ease of constitutional amendment. The right-year fixed effect δ_{ct} controls for any common shocks that vary across rights and years but do not vary across countries, such as policies of international organizations, international conferences, or the entry into force of human rights treaties. Finally, ε_{cit} represents an idiosyncratic error term. To account for heteroskedasticity and the correlation of error terms within each country-year cell, we compute robust standard errors clustered by country-year.

It is important to note that the spatial lags in Eq. (1) are likely to be endogenous (that is, correlated with the error term), and

that it is therefore difficult (if not impossible) to interpret our estimates as causal. We therefore interpret all estimation results reported in the remainder of this paper as indicating *correlations* rather than *causal relationships*. Having said that, not all sources of endogeneity necessarily pose a concern. First, any country-year and right-year specific omitted variables are controlled for by the fixed effects. Second, we temporally lag the spatial lags by 1 year (and, for robustness, by 2, 3, 4 and 5 years) as an attempt to reduce reverse causality.⁴ Although endogeneity concerns do not warrant a causal interpretation, we believe that our analysis is nonetheless of interest. It identifies correlations that are consistent with some of the hypotheses developed in Section 2 and, in our view, should be seen as a first attempt to systematically explore the potential transnational origins of constitutions.

The model in Eq. (1) is a binary response model so that the inclusion of fixed effects requires some care. Given that the dependent variable is a hazard probability, a duration model would perhaps be the natural choice in estimation, but it does not allow for the inclusion of fixed effects. We therefore estimate a linear probability model (hereafter, LPM) with fixed effects. Wooldridge (2002) shows that such a model provides consistent coefficient estimates, which can be interpreted as marginal effects. Although the LPM can generate predicted values outside the unit interval, it often well approximates the response probability for common regressor values.⁵ Alternatives are the fixed effects logit and probit models, which take into account the binary nature of the model and yield predicted values within the unit interval. However, as any fixed effects model, they suffer from the “incidental parameters” problem, causing the estimates for the fixed effects to be inconsistent. While, in the case of the LPM and the fixed effects logit model, it is possible to eliminate these fixed effects so that the other coefficients can be estimated consistently, this is not the case for other models, including fixed effects probit (Verbeek, 2000). Ashenfelter and Card (2002) in fact use *both* the LPM and the fixed effects logit model to estimate panel fixed effects specifications in which the dependent variable is a hazard

⁴ We use up to five-year temporal lags because constitutional amendment typically does not take longer than one electoral cycle, which usually corresponds to (at most) four years. In fact, Ginsburg et al. (2009) find that the mean and median constitution-making processes take 16 and 10 months, respectively, with a standard deviation of 22 months.

⁵ The issue of predictions outside the unit interval becomes less relevant if, as in our model, most explanatory variables are dummies for mutually exclusive and exhaustive categories. One drawback of the LPM is the likely presence of heteroskedasticity but we address this by computing robust standard errors (Wooldridge, 2002).

³ Only in a few cases are constitutional rights abolished after their adoption so that they re-enter the sample.

Table 3
Description of variables and data sources.

A: Constitutional rights		
Variable	Description of variable	Sources
y_{cit}	Binary variable for adoption of constitutional right (dependent variable)	The two primary sources for the full text (English translation) of each constitution were Peaslee's <i>Constitutions of Nations</i> , published in three editions in 1950, 1956, and 1965, and Blaustein and Flanz's <i>Constitutions of the Countries of the World</i> , a continuously updated loose-leaf collection. These were supplemented by a variety of additional sources including, for example, Maddex's 2007 <i>Constitutions of the World</i> , and Lavroff and Peiser's 1961 <i>Les Constitutions Africaines</i> .
z_{cjt-1}	Binary variable for presence of constitutional right	Same as for y_{cit}
B: Spatial weights		
Variable	Description of variable	Used proxy and sources
ω_{ijt-1}^1	Coercion: common colonizer	Proxy x_{ijt-1}^1 : binary variable that takes a value of 1 if countries i and $j \neq i$ have ever been a colony of the same country and 0 if they have not, data from Mayer and Zignago (2006)
ω_{ijt-1}^2	Coercion: colonial relationships	Proxy x_{ijt-1}^2 : binary variable that takes a value of 1 if country i has ever been a colony of country $j \neq i$, and 0 if it has not, data from Mayer and Zignago (2006)
ω_{ijt-1}^3	Coercion: development assistance common dominant donor	Proxy x_{ijt-1}^3 : binary variable that takes a value of 1 if countries i and $j \neq i$ have the same dominant aid donor (that is, the donor that gives the highest proportion of total aid to a country), and 0 if they do not, where (i) aid is expressed as net disbursements of official development assistance (ODA) plus official aid (OA) in millions of U.S. dollars, and (ii) the donor can be either a country or a multilateral institution, aid data from OECD (2006, 2007)
ω_{ijt-1}^4	Coercion: development assistance donor–recipient relationship	Proxy x_{ijt-1}^4 : net disbursements of official development assistance (ODA) plus official aid (OA) received by recipient country i from donor country $j \neq i$ in year $t-1$ in millions of U.S. dollars, where negative disbursements are replaced by zeroes, data from OECD (2006, 2007)
ω_{ijt-1}^5	Competition: export markets	Proxy x_{ijt-1}^5 : correlation between (i) country i 's exports in millions of current U.S. dollars to each of the other countries and (ii) country $j \neq i$'s exports to each of the other countries, both in year $t-1$, where negative correlations are replaced by zeroes, export data from Gleditsch (2002)
ω_{ijt-1}^6	Learning: common legal origin	Proxy x_{ijt-1}^6 : binary variable that takes a value of 1 if countries i and $j \neq i$ have the same legal origin, and 0 if they do not, data on legal origin are from La Porta et al. (1999), who identify 5 types of legal origin: English, Socialist, French, German and Scandinavian
ω_{ijt-1}^7	Learning: trade relationships	Proxy x_{ijt-1}^7 : exports from country i to country $j \neq i$ in year $t-1$ in millions of current U.S. dollars, data from Gleditsch (2002)
ω_{ijt-1}^8	Learning: common official language	Proxy x_{ijt-1}^8 : binary variable that takes a value of 1 if countries i and $j \neq i$ share a common official language and 0 if they do not, data from Mayer and Zignago (2006)
ω_{ijt-1}^9	Learning: common dominant religion	Proxy x_{ijt-1}^9 : binary variable that takes a value of 1 if countries i and $j \neq i$ had the same dominant religion in 1970 (that is, the religion that has the largest proportion of a country's population adhering to it), and 0 if they do not, data on religion are from Barro and McCleary (2005), who identify 7 religions: Catholic, Protestant, Orthodox, Jews, Muslim, Hindu, Buddhist (we omit other categories in Barro and McCleary, 2005 as they do not necessarily represent 1 religion only)
ω_{ijt-1}^{10}	Learning: military alliances	Proxy x_{ijt-1}^{10} : number of separate formal military alliances between country i and country $j \neq i$ in year $t-1$, data on military alliances from Gibler and Sarkees (2004), who identify 3 types of military alliance: defense pact, neutrality or non-aggression pact, and entente
ω_{ijt-1}^{11}	Learning: common border	Proxy x_{ijt-1}^{11} : binary variable that takes a value of 1 if countries i and $j \neq i$ share a border and 0 if they do not, data from Mayer and Zignago (2006)
ω_{ijt-1}^{12}	Acculturation: world polity	Proxy x_{ijt-1}^{12} : here, the variable x_{ijt-1} simply takes a value of 1 for all countries i and $j \neq i$ so that the spatial lag corresponds to the previous year's unweighted average incidence of a right in other countries
ω_{ijt-1}^{13}	Control variable: same country	Proxy x_{ijt-1}^{13} : binary variable that takes a value of 1 if countries i and $j \neq i$ were ever part of the same country and 0 if they were not, data from Mayer and Zignago (2006)

probability and find similar results for both estimators. In line with Ashenfelter and Card (2002), we consider the LPM and the fixed effects logit model to be the two most suitable fixed effects models for our analysis. However, as explained by Wooldridge (2002), the fixed effects logit model cannot be used to compute marginal effects. In addition, from a practical perspective, the estimation of a large number of fixed effects is computationally challenging. For these reasons, we use the LPM in all our fixed effects estimations.⁶

4.1. Construction of spatial lags

To estimate the diffusion of constitutional rights, we construct spatial lags— $\sum_{j \neq i} (\omega_{ijt-1}^1 \times z_{cjt-1}), \dots, \sum_{j \neq i} (\omega_{ijt-1}^p \times z_{cjt-1})$ in Eq. (1)—which capture the weighted average incidence of constitutional rights in other countries. What distinguishes the spatial lags from each other is the spatial weights ($\omega_{ijt-1}^1, \dots, \omega_{ijt-1}^p$): each lag is weighted according to a different dimension of space (e.g. language, common legal origin).

For each space dimension, we collected a proxy for the connectivity from country j to country i , where the proxy is a variable

⁶ We use the Stata command "felsesdreg" written by Cornelissen (2008).

Table 4

Descriptive statistics for the variables used in estimation.

A: Summary statistics

Dependent variable	Observations	Mean	St. dev.	Minimum	Maximum
y_{cit}	505,348	0.015	0.121	0	1
$y_{cit=1}$	7475				
<i>Spatial lags</i>					
$\sum_{j \neq i} (\omega_{ijt-1}^1 \times z_{cjt-1})$	505,348	0.140	0.210	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^2 \times z_{cjt-1})$	505,348	0.132	0.317	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^3 \times z_{cjt-1})$	505,348	0.134	0.225	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^4 \times z_{cjt-1})$	505,348	0.105	0.235	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^5 \times z_{cjt-1})$	505,348	0.202	0.196	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^6 \times z_{cjt-1})$	505,348	0.189	0.217	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^7 \times z_{cjt-1})$	505,348	0.171	0.219	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^8 \times z_{cjt-1})$	505,348	0.140	0.225	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^9 \times z_{cjt-1})$	505,348	0.194	0.219	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^{10} \times z_{cjt-1})$	505,348	0.114	0.215	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^{11} \times z_{cjt-1})$	505,348	0.141	0.268	0	1
$\sum_{j \neq i} (\omega_{ijt-1}^{12} \times z_{cjt-1})$	505,348	0.210	0.196	0	0.967
$\sum_{j \neq i} (\omega_{ijt-1}^{13} \times z_{cjt-1})$	505,348	0.076	0.227	0	1

B: Pairwise correlations of spatial lags

Note: $sl1 = \sum_{j \neq i} (\omega_{ijt-1}^1 \times z_{cjt-1})$, $sl2 = \sum_{j \neq i} (\omega_{ijt-1}^2 \times z_{cjt-1})$, ..., $sl13 = \sum_{j \neq i} (\omega_{ijt-1}^{13} \times z_{cjt-1})$

	sl1	sl2	sl3	sl4	sl5	sl6	sl7	sl8	sl9	sl10	sl11	sl12	sl13
sl1	1.00												
sl2	0.41	1.00											
sl3	0.54	0.25	1.00										
sl4	0.43	0.36	0.52	1.00									
sl5	0.65	0.38	0.57	0.46	1.00								
sl6	0.64	0.44	0.52	0.45	0.81	1.00							
sl7	0.54	0.45	0.46	0.55	0.76	0.68	1.00						
sl8	0.65	0.44	0.42	0.36	0.62	0.62	0.52	1.00					
sl9	0.58	0.39	0.47	0.39	0.81	0.77	0.64	0.59	1.00				
sl10	0.37	0.28	0.31	0.24	0.50	0.44	0.43	0.47	0.46	1.00			
sl11	0.41	0.33	0.34	0.27	0.52	0.51	0.50	0.49	0.50	0.46	1.00		
sl12	0.64	0.36	0.56	0.46	0.96	0.81	0.73	0.60	0.81	0.46	0.49	1.00	
sl13	0.43	0.23	0.31	0.24	0.32	0.34	0.29	0.42	0.33	0.33	0.42	0.30	1.00

C: Sample countries (ISO alpha-3 codes)

afg	bfa ^a	caf ^a	cub	est ^a	gnq ^a	irq	kw ^a	mdg	mys ^a	phl	sgp ^a	tcd ^a	usa
ago ^a	bgd ^a	can	cyp ^a	eth	grc	isr ^a	lao	mdv	nam ^a	png ^a	slb ^a	tgo ^a	uzb ^a
alb	bgr	che	cze ^a	fin	grd ^a	ita	lbn	mex	ner ^a	pol	sle ^a	tha	vct ^a
are ^a	bhr ^a	chl	deu ^a	fji ^a	gtm	jam ^a	lbr	mhl	nga ^a	prk	slv	tjk ^a	ven
arg	bhs ^a	chn	dji ^a	fra	guy ^a	jor	lby ^a	mkd ^a	nic	prt	som ^a	tkm ^a	vnm ^a
arm ^a	bih ^a	civ ^a	dma ^a	fsm	hnd	jpn	lca ^a	mli ^a	nld	pry	stp ^a	ton	vut ^a
atg ^a	blr ^a	cmr ^a	dnk	gab ^a	hrv ^a	kaz ^a	lka	mlt ^a	nor	qat ^a	sur ^a	tto ^a	wsm ^a
aus	blz ^a	cod ^a	dom	gbr	hti	ken ^a	lso ^a	mmr ^a	npl	rou	svk ^a	tun ^a	yem ^a
aut	bol	cog ^a	dza ^a	geo ^a	hun	kgz ^a	ltu ^a	mng	nzl	rus ^a	svn ^a	tur	zaf
aze ^a	bra	col	ecu	gha ^a	idn	khm	lux	moz ^a	omn ^a	rwa ^a	swe	tza ^a	zmb ^a
bdi ^a	brb ^a	com ^a	egy	gin ^a	ind ^a	kir ^a	lva ^a	mrt ^a	pak ^a	sau	swz ^a	uga ^a	zwe ^a
bel	brn ^a	cpv ^a	eri ^a	gmb ^a	irl	kna ^a	mar ^a	mus ^a	pan	sdn ^a	syc ^a	ukr ^a	
ben ^a	bwa ^a	cri	esp	gnb	irn	kor	mda ^a	mwi ^a	per	sen ^a	syr	ury	

^a Countries for which the adoption of the first constitution is included in our sample.

that is larger than or equal to zero and higher values correspond to stronger connectivity. Let us call this proxy $x_{ijt-1}^1, \dots$, and x_{ijt-1}^p for the different space dimensions, respectively. We constructed the spatial lags, for example $\sum_{j \neq i} (\omega_{ijt-1}^1 \times z_{cjt-1})$, in the following

manner. We first computed the sum of values for the proxy x_{ijt-1}^1 over all countries $j \neq i$, that is $\sum_{j \neq i} x_{ijt-1}^1$, using only those combina-

tions of right c , country i , other country $j \neq i$, and year $t-1$, for which data on both the proxy x_{ijt-1}^1 and the variable z_{cjt-1} (binary variable for presence of constitutional right) is available. We then expressed the proxy x_{ijt-1}^1 as a share of that sum $\sum_{j \neq i} x_{ijt-1}^1$, which yielded the spa-

tial weights $\omega_{ijt-1}^1 \left(= x_{ijt-1}^1 / \sum_{j \neq i} x_{ijt-1}^1 \right)$ in Eq. (1) and ensured that these added up to 1 ("row-standardization"). Using these spatial weights, we then computed $\sum_{j \neq i} (\omega_{ijt-1}^1 \times z_{cjt-1})$, which yielded the first spatial lag in Eq. (1).⁷ The other spatial lags were constructed in the same way. We thus constructed each spatial lag by computing the previous year's weighted average incidence of a right in all other countries for which we have data on connectivity to country i and presence (or absence) of that right. Table 3 (part B) describes the different spatial weights used in our estimations, the proxies used to generate these weights, and the data sources for these proxies.

As can be seen from Table 3, we use four spatial weights to test coercion. The first two relate to the possible importance of colonial power. ω_{ijt-1}^1 captures whether countries i and j have ever been a colony of the same country, while ω_{ijt-1}^2 indicates whether country i has ever been a colony of country j . The next two spatial weights test for coercion through development assistance (foreign aid). ω_{ijt-1}^3 captures whether countries i and j have the same dominant donor (either a country or a multilateral institution), where a dominant donor is the donor that gives the highest proportion of aid to a country. ω_{ijt-1}^4 instead reflects bilateral aid flows received by recipient country i from donor country j .

To test competition for export markets, we use a spatial weight (ω_{ijt-1}^5) that captures the correlation between country i 's exports to each of the other countries and country j 's exports to each of the other countries. The higher this correlation, the larger the extent to which the two countries export to the same foreign markets and thus compete with one another (Simmons and Elkins, 2004).

The next six spatial weights are used to test learning. ω_{ijt-1}^6 indicates whether countries i and j have the same legal origin, following La Porta et al. (1999), who identify five types of legal origin: English, Socialist, French, German and Scandinavian. ω_{ijt-1}^7 reflects learning through trade relationships and captures the exports from country i to country j . ω_{ijt-1}^8 and ω_{ijt-1}^9 relate to whether countries i and j share a common official language or a common dominant religion, respectively, both of which could facilitate learning but could also point at acculturation. ω_{ijt-1}^{10} measures the number of separate formal military alliances between country i and country j . Finally, to test learning through geographic proximity, ω_{ijt-1}^{11} indicates whether countries i and j share a border.

To test acculturation through the global world polity, ω_{ijt-1}^{12} attaches equal weights to all countries $j \neq i$ so that the

corresponding spatial lag is simply the unweighted average incidence of constitutional rights in other countries. This reflects the notion that the constitutional choices of all foreign countries are deemed equally important (see Meyer et al., 1997).

Finally, to control for constitutional similarity that is due to new countries simply retaining constitutional arrangements of the former mother country (and hence is not due to diffusion), we include a spatial weight (ω_{ijt-1}^{13}) that indicates whether countries i and j were ever part of the same country.

Table 4 (parts A and B) reports summary statistics and pairwise correlations for the spatial lags used in estimation. All correlations are positive, but only the spatial lags that capture competition for exports and acculturation through the global world polity have a correlation far above 0.80. Including each of these spatial lags separately did not substantially change our results, so multicollinearity is not a concern.

Our data set consists of all constitutional rights, countries and years for which data are available, and covers 108 rights in 180 countries over the period 1948–2001. Table 4 (part C) lists the 180 countries used in estimation.

5. Estimating the diffusion of constitutional rights

Table 5 reports the results of estimating Eq. (1). The first two columns report the results from a linear probability model (LPM) without fixed effects and a probit model without fixed effects, respectively. Table 5, column (3), reports the results from an LPM with both country-year and right-year fixed effects. These fixed effects control for all country-year and right-year specific omitted variables (as well as for the world polity spatial lag, which is therefore no longer included in column (3)). In all three specifications, the correlations between a country's adoption of constitutional rights and past adoption by foreign countries with the same former colonizer, the same legal origin, and the same dominant religion are positive and statistically significant at the 1% level. The choices of the former colonizer itself and foreign countries with the same dominant aid donor are also significantly correlated with domestic rights adoption, although at varying levels of significance. The choices of export destination countries matter only marginally for domestic rights. Together, these correlations are consistent with the notion that constitutional rights diffuse: where countries are connected through colonial past, common legal origin, common religion or common aid donors, their constitutions are interdependent. By contrast, the constitutional choices of aid donors themselves, export competitors, countries with a common official language and countries with a common border do not appear to drive the diffusion of constitutional rights. We also do not find evidence to support a global diffusion effect driven by the world polity at large.

We next consider the strength of the transnational correlations. The coefficients from the LPM in Table 5, columns (1) and (3), and the marginal effects from the probit model in Table 5, column (2), approximate the change in the probability of adoption if the corresponding spatial lag increases from zero to one. They thus proxy what happens to the probability of adopting a constitutional right if all relevant foreign countries $j \neq i$ (that is, all countries with a strictly positive spatial weight ω_{ijt-1}) decide to adopt that right. The positive and statistically significant coefficients in column (1) show that adoption by all relevant foreign countries is associated with an increase in the probability of domestic adoption in the range of 0.7 (for former colonizers) to 4.5% points (for countries with the same legal origin) in each year. In other words, if the former colonizer(s) adopt(s) a given right, the probability of domestic adoption increases by 0.7% points each year, while if all countries with the same legal origin adopt, this probability

⁷ Some countries became independent during our sample period. Since for their years of independence, the temporally lagged spatial lags are missing, we instead use the contemporaneous spatial lags.

Table 5
Estimation results—baseline specifications.

Diffusion mechanism	Explanatory variable	(1)	(2)	(3)
Coercion	Constitutional rights of countries with the same former colonizer ($t-1$)	0.036*** (0.011)	0.010*** (0.003)	0.020*** (0.005)
Coercion	Constitutional rights of former colonizer(s) ($t-1$)	0.007* (0.004)	0.003*** (0.001)	0.007*** (0.002)
Coercion	Constitutional rights of countries with the same dominant aid donor ($t-1$)	0.017* (0.007)	0.007*** (0.002)	0.022*** (0.005)
Coercion	Constitutional rights of aid donors ($t-1$)	-0.007 (0.004)	-0.004* (0.002)	-0.004 (0.003)
Competition	Constitutional rights of export competitors ($t-1$)	0.004 (0.028)	-0.001 (0.010)	0.029 (0.020)
Learning	Constitutional rights of countries with the same legal origin ($t-1$)	0.045*** (0.008)	0.020*** (0.003)	0.026*** (0.004)
Learning	Constitutional rights of export destination countries ($t-1$)	0.011* (0.006)	0.004 (0.003)	0.008* (0.004)
Learning	Constitutional rights of countries with a common official language ($t-1$)	-0.019 (0.012)	-0.003 (0.003)	-0.002 (0.005)
Learning	Constitutional rights of countries with the same dominant religion ($t-1$)	0.033*** (0.006)	0.015*** (0.003)	0.017*** (0.003)
Learning	Constitutional rights of military allies ($t-1$)	-0.026*** (0.008)	-0.008* (0.002)	-0.010* (0.005)
Learning	Constitutional rights of countries with a common border ($t-1$)	0.009 (0.006)	0.003 (0.002)	-0.001 (0.003)
Acculturation	Constitutional rights of all (equally weighted) other countries (world polity) ($t-1$)	-0.016 (0.027)	-0.003 (0.009)	
Control (no diffusion)	Constitutional rights of countries that were formerly part of the same country ($t-1$)	0.011 (0.008)	0.003 (0.002)	0.009* (0.005)
Country-year fixed effects		No	No	Yes
Right-year fixed effects		No	No	Yes
Method		LPM	Probit	LPM
Number of observations		505,348	505,348	505,348
Goodness-of-fit (R -squared/pseudo R -squared)		0.03	0.14	0.39

Notes: The dependent variable is a dummy variable that captures the adoption of a constitutional right. Columns (1) and (3) report the estimated coefficients from a linear probability model (LPM). Column (2) reports marginal effects from a probit model, where all regressors are evaluated at their sample mean. In all columns, robust standard errors (clustered by country-year) are reported in parentheses.

* Significance at the 10% level.

** Significance at the 5% level.

*** Significance at the 1% level.

increases by 4.5% points each year. The size of the other effects lies within these upper and lower bounds. To further assess the size of these effects, we evaluate them against the annual probability of adoption when all explanatory variables are set at their sample mean. For the model in Table 5, column (1), this probability is 1.5%. This means that for an average country that has not yet adopted a given right in year t , if nothing changes, the probability that it will have adopted by year $t+20$ is $1 - (0.985^{20})$ or 26%. As a first example, suppose that, in addition to the countries that had already adopted, the (sole) former colonizer, let's say the United Kingdom, adopts the right. In that case, the annual probability of adoption increases from 1.5% to 2.2%, which after 20 years cumulates to a probability of having adopted of 36%, an increase of 10% points relative to counterfactual. In other words, the actions of one or more foreign colonizers appear to increase the probability of similar action by the former colonies by 10% points over a 20-year period. As a second example, now suppose that, in addition to the countries that had already adopted, half of the countries with the same legal origin adopt the right. In that scenario, the annual probability of adoption is estimated to increase to 3.75%, which after 20 years cumulates to a probability of having adopted of 53%, an increase of 27% points relative to counterfactual. These examples indicate that the long-run diffusion effects suggested by our estimated coefficients are substantial.⁸ We should again emphasize, however, that the spatial lags are likely to be endogenous and that our estimation results can therefore not be given a causal interpretation.

In Table 5, columns (1)–(3), the spatial lag that captures the constitutional choices of military allies enters statistically significant but with a negative sign. Though somewhat puzzling at first, this is consistent with Schauer's (2000) observation that geopolitical considerations may produce constitutional anti-models: the Irish avoid British models, the Vietnamese avoid French models and the Canadians, worried about becoming the 51st state, avoid American models. It is possible that, after controlling for other types of proximity, military alliances capture the ties between historical enemies that do not otherwise interact.

The R -squared of the LPM without fixed effects in Table 5, column (1), indicates that the spatial lags collectively account for around 3% of the variation in constitutional rights adoption. When adding the fixed effects in Table 5, column (3), the R -squared increases to 0.39. To document how strongly each of the four components (the spatial lags, the *country-year* fixed effects, the *right-year* fixed effects, and the residual) contributes to explaining the variance in adoption, we use the variance decomposition developed by Cornelissen (2008) and apply it to the specification of Table 5, column (3). We find that 3% of the variation in rights adoption is explained by the spatial lags (consistent with the R -squared in column (1)). Most of the variation is accounted for by the *country-year* fixed effects (around 37%) and by factors not included in our model (around 59%), while the *right-year* fixed effects seem unimportant.⁹

⁸ In these examples, we have focused exclusively on how the past adoption of a constitutional right by some countries raises the probability of adoption by others (the most important – 'first-order' – spatial adjustments). However, for some of these other countries the higher probability of adoption will lead to actual adoption. This actual adoption will, in turn, raise the probability of adoption in neighboring countries ('second-order' adjustments) and this process continues until the shock dies out. While the magnitude of these higher-order adjustments is small relative to the first-order adjustments that we focus on, the diffusion effects are thus slightly larger than suggested by the examples.

⁹ To reduce reverse causality and to investigate the robustness of our results to using alternative time lags, we re-estimated the preferred fixed effects specification of Table 5, column (3), using spatial lags that are temporally lagged by 2, 3, 4 and 5 years instead of 1. Results were similar (not reported).

6. Patterns of diffusion

It is possible that diffusion effects vary across countries, time periods, and constitutional rights. In this section, we explore this possibility by re-estimating the preferred specification in Table 5, column (3), for different subsamples based on income, democracy, time period, and type of constitutional right (Melton, 2013).

6.1. Different types of countries

We first explore whether the diffusion effects suggested by our coefficient estimates are different for different types of countries. As a first possibility, we consider countries with different levels of per capita income. Under the logic of coercion, poor (and thus weaker) countries are likely to be more susceptible to transnational influence than rich and powerful ones. But also under the logic of competition, diffusion may be stronger in poor countries, as they often face more intense competition for their (primary) exports than rich countries (which export more technologically advanced products).

To explore the possibility that diffusion depends on per capita income, we split the countries in our sample into OECD members and non-OECD members and re-estimate the specification in Table 5, column (3), for these two subsamples separately. The results are reported in Table 6, columns (1) and (2), and are consistent with the hypothesis that the constitutions of non-OECD members are indeed more susceptible to transnational influence than the constitutions of OECD members. While most spatial lag coefficients for non-OECD members are positive and statistically significant, the coefficients for OECD members are not statistically significant, except for the coefficient of the spatial lag for common legal origin. More specifically, the coercion and competition channels (captured by the constitutional choices of the former colonizer, countries with the same former colonizer, countries with the same dominant aid donor, and export competitors) work exclusively for non-OECD members. The only diffusion channel that is common to both OECD and non-OECD members is learning from countries with the same legal origin.

Not only economic development, but also the democratic nature of the regime, may affect nations' susceptibility to diffusion. Specifically, democracies may be more likely to engage in genuine learning, while autocracies may emulate foreign models for more disingenuous reasons. The reason for this difference could be that, in the absence of democratic constraints, lip-service to internationally accepted constitutional norms may be a cheap way to gain international recognition. To investigate the possibility that diffusion depends on democracy, we split the sample into democracies and non-democracies and re-estimate the specification in Table 5, column (3), for these two subsamples separately.¹⁰ The results (not reported) suggest that the difference between diffusion in democracies and diffusion in autocracies is relatively small.

6.2. Different time periods

Diffusion may not only differ across countries, but also across time. Specifically, the literature has identified three distinct global "waves" of constitution-making (Elster, 1995, p. 369). The first wave (1948–1972) took place in the context of decolonization, starting with the independence of India and Pakistan, gaining momentum

¹⁰ Following Collier and Hoeffler (2009), we define democracies as countries with a Polity IV "democ" score that is greater than or equal to 5 and non-democracies as countries with a score below 5. The Polity IV data are described in Marshall and Jaggers (2005).

Table 6
Estimation results—subsamples based on income and first constitution.

Diffusion mechanism	Explanatory variable	OECD (1)	Non-OECD (2)	Year of first constitution (3)	Other years (4)
Coercion	Constitutional rights of countries with the same former colonizer ($t-1$)	-0.001 (0.010)	0.016* (0.006)	0.059 (0.052)	-0.001 (0.003)
Coercion	Constitutional rights of former colonizer(s) ($t-1$)	0.006 (0.004)	0.008*** (0.002)	0.101*** (0.037)	0.003*** (0.001)
Coercion	Constitutional rights of countries with the same dominant aid donor ($t-1$)	0.040* (0.021)	0.013* (0.005)	0.184* (0.064)	0.004* (0.002)
Coercion	Constitutional rights of aid donors ($t-1$)	0.024* (0.012)	-0.012*** (0.003)	-0.008 (0.055)	0.006*** (0.002)
Competition	Constitutional rights of export competitors ($t-1$)	-0.059 (0.060)	0.043* (0.020)	0.217* (0.119)	0.013*** (0.007)
Learning	Constitutional rights of countries with the same legal origin ($t-1$)	0.021*** (0.008)	0.031* (0.006)	0.382* (0.163)	0.012*** (0.003)
Learning	Constitutional rights of export destination countries ($t-1$)	-0.016 (0.010)	0.012*** (0.004)	0.138*** (0.050)	-0.002 (0.002)
Learning	Constitutional rights of countries with a common official language ($t-1$)	-0.005 (0.007)	0.006 (0.007)	0.187* (0.068)	0.000 (0.003)
Learning	Constitutional rights of countries with the same dominant religion ($t-1$)	0.002 (0.003)	0.022*** (0.005)	0.124* (0.064)	0.008*** (0.002)
Learning	Constitutional rights of military allies ($t-1$)	0.006 (0.009)	-0.010* (0.006)	0.050 (0.069)	0.007*** (0.003)
Learning	Constitutional rights of countries with a common border ($t-1$)	0.006 (0.004)	-0.003 (0.005)	0.029 (0.037)	0.004*** (0.002)
Control (no diffusion)	Constitutional rights of countries that were formerly part of the same country ($t-1$)	0.010* (0.006)	0.007 (0.006)	-0.025 (0.038)	0.003 (0.002)
Country-year fixed effects		Yes	Yes	Yes	Yes
Right-year fixed effects		Yes	Yes	Yes	Yes
Method		LPM	LPM	LPM	LPM
Number of observations		110,428	394,920	11,340	494,008
Goodness-of-fit (R-squared)		0.42	0.39	0.74	0.32

Notes: The dependent variable is a dummy variable that captures the adoption of a constitutional right. Robust standard errors (clustered by country-year) are reported in parentheses.

* Significance at the 10% level.

** Significance at the 5% level.

*** Significance at the 1% level.

in the 1960s, and ending in the early 1970s. The second wave (1973–1989) started with the fall of dictatorial regimes in Southern Europe in the mid-1970s and ended with the end of the Cold War. The third wave (1990–2001) started immediately after the end of the Cold War and was marked by constitutional reconstruction in former Soviet Republics and throughout the globe.

To explore the possibility that diffusion differs across these three waves, we divide our sample period 1948–2001 into the three post-WWII waves and re-estimate the baseline specification of Table 5, column (3), for each of these subsamples. The results (not reported) suggest that the baseline results are for the most part robust across the different waves of constitution-making.

We next explore the possibility that the strength of diffusion is different during years in which a country adopts its first constitution. We expect diffusion to be stronger when a nation adopts its very first constitution. When writing a new document from scratch, constitution-makers likely turn abroad for inspiration, and rely on the models—or “constitutional boiler-plates”—provided by foreign constitutions (Ginsburg, 2013). Subsequent amendments, by contrast, typically concern only a few constitutional rights, and specifically those parts of the original constitution that contained design flaws. Constitutional amendments, it has often been said, are responses to “imperfection” (Levinson, 1995). Especially when the original constitution was largely borrowed from abroad, it is likely that amendments are made to adapt the constitution to local circumstances (Berkowitz et al., 2003). If true, amendments are not driven by foreign influences, but by domestic considerations instead.

Table 4 (part C) lists the 105 countries for which the adoption of the first constitution is included in our sample. Table 6, columns (3) and (4), report the results from re-estimating the specification in Table 5, column (3), for subsamples of years in which a country adopts its first constitution and other years. The results show that, irrespective of whether countries adopt their first constitution or change their existing constitution, their adoption decisions are correlated with the constitutional choices of their former colonizer, countries with the same dominant aid donor, export competitors, countries with the same legal origin and countries with the same dominant religion. These results for the most part resemble the earlier results reported in Table 5. But while diffusion appears to be present in both subsamples, the transnational correlations are substantially stronger during years in which a country adopts its first constitution.

This finding raises the question how much of the variation in constitutional rights adoption during years in which a country adopts its first constitution is collectively explained by the spatial lags. To answer this question, we use the variance decomposition developed by Cornelissen (2008) and apply it to the specification of Table 6, column (3). We find that, during years in which a country adopts its first constitution, the spatial lags explain no less than 46% of the variation in constitutional rights. For comparison, when we previously applied the variance decomposition to the baseline specification of Table 5, column (3), which includes *all* years, we found that only 3% of the variation in rights adoption was explained by the spatial lags. Hence, not only do the individual diffusion effects seem to be stronger during years in which a country adopts its first constitution, but diffusion also seems to explain much more of the variation in constitutional rights adoption. These findings support the notion that, particularly when drafting a first constitution, countries follow the constitutional choices of others.¹¹

6.3. Different types of rights

It is also possible that diffusion differs across different types of rights. To illustrate, constitution-makers may model property guarantees after those of their economic competitors, while they model their right to life after that of their religious partners. To investigate the possibility that diffusion depends on the types of rights, we divide the 108 rights into 7 categories: (i) political, democratic and accountability rights, (ii) life, liberty, physical integrity and privacy rights, (iii) fair trial rights, (iv) equality rights, (v) socio-economic rights, (vi) women, children and family rights, and (vii) minority rights, environmental rights and other “new” rights. We then re-estimate the baseline specification of Table 5, column (3), for subsamples of each of the categories. The results (not reported) suggest that the baseline results are mostly robust across the subsamples. One result that is not robust is the insignificance of the spatial lag that captures the constitutional choices of export competitors. This spatial lag now enters significant in the subsample of fair trial rights. Thus, when constitution-makers compete for export markets, they seem to do so by offering fair judicial process rights.

7. Conclusion

Constitutions are commonly described as inherently national products, shaped by domestic politics and reflecting the views and values of the nation. In this paper we have developed and empirically tested a novel hypothesis, which is that constitutions are also shaped by transnational influence, or diffusion. Drawing on original data on written constitutions, we first documented the global proliferation of constitutional rights over the past six decades. We then estimated a spatial lag model to explain their adoption. Our results show that the decision of countries to adopt constitutional rights is correlated with past adoption by their former colonizer, countries with the same legal origin, the same religion, the same former colonizer, and the same dominant aid donor. These findings are consistent with various diffusion mechanisms. Diffusion among countries with the same legal origin or religion suggests a functional form of learning whereby countries learn from similarly situated peers. Diffusion among countries with the same aid donor, on the other hand, suggests strategic behavior to attract foreign aid and possibly indicates coercion. Likewise, diffusion through colonial ties also suggests coercive power. We also find some notable differences across different types of countries. First, developing countries appear to be more susceptible to transnational influence than industrialized ones. And second, diffusion seems to be much stronger and seems to explain a much larger proportion (46%) of the variation in bills of rights during years in which a country adopts its first constitution.

Finally, we present our analysis with a note of caution: due to the endogeneity of the spatial lags, it is difficult (if not impossible) to interpret our estimation results as causal. Nonetheless, we believe that our findings are consistent with some of the diffusion hypotheses set out in Section 2 and our analysis should be viewed as a first attempt to systematically explore the potential transnational origins of national constitutions. Further in-depth case studies are needed to identify the causal mechanisms of diffusion in constitution-making.

¹¹ A possible concern is that our finding that diffusion is more important during first constitution years could be explained by the *type of countries* for which the adoption of the first constitution is included in our sample. Re-estimating the

baseline specification of Table 5, column (3), for all observations corresponding to those countries, except for the observations in the first constitution years, revealed that this is not the case.

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